

Court No. - 21

Case :- WRIT - C No. - 5740 of 2018

Petitioner :- M/S Baleshwer Floor Mill Industries

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Randhir Singh

Counsel for Respondent :- C.S.C.,A/M0817

Hon'ble Krishna Murari,J.

Hon'ble Ajay Bhanot,J.

Heard learned counsel for the petitioner.

Petitioner is disputing the correctness of the bill, which is sought to be recovered from him as arrears of land revenue.

Shri Mahboob Ahmad appearing for the respondent-corporation points out that under Clause 6.5 of the Electricity Supply Code, 2005, petitioner has a remedy of approaching the Executive Engineer, in case, he doubts the correctness of the bill.

Since the petitioner has a statutory remedy available under the Electricity Supply Code, we are not inclined to interfere in the matter and thus relegate the petitioner to avail the remedy provided under Clause 6.5.

In view of above, the petitioner may make an application before the concerned authority along with a certified copy of this order within a period of two weeks from today and, in case, any such application is made, the authority shall proceed to consider and decide the same in accordance with law by a reasoned and speaking order within a further period of four weeks from the date of making of such application.

For a period of six weeks or till the decision on the application to be made by the petitioner, whichever is earlier, recovery proceedings against the petitioner, no coercive action shall be taken against the petitioner in pursuance to the impugned recovery citation.

Writ petition, accordingly, stands disposed of.

Order Date :- 12.2.2018

VKS